

1.1

Legal Compliance



Rationale

A legal business complies with applicable laws, licensing, and permit requirements.

A wide variety of laws and regulations apply to aquaculture. Ensuring national laws are followed, and necessary permits and licences are acquired helps to promote a socially and environmentally responsible aquaculture industry. Compliance also benefits a business by enhancing customer trust, increasing revenue, strengthening reputation, and avoiding legal sanctions and fines⁴.

This criterion focuses on the legal compliance of ASC certified farms as the basis of a well-managed business.

Intent – The aquaculture industry complies with all applicable legal requirements.

Indicators:

1.1.1

The UoC shall hold all applicable legal licences and permits.

1.1.2

The UoC shall comply with all applicable legal requirements, including those relevant to the Criteria within the ASC Farm Standard.

⁴ Widjaja, G. (2024). Managing Legal and Corporate Compliance to Induce and Enhance Business. Law and Humanities Quarterly Reviews, 3(2). <https://doi.org/10.31014/aior.1996.03.02.115>

1.2

Management Systems



Rationale

A management system supports an organisation to manage the interrelated parts of the business to achieve its objectives. Management systems include policies, processes and procedures, and vary in complexity depending on the organisation's context. They can support compliance with laws and regulations, detection and resolution of issues, and monitoring of essential operational activities.

This Criterion focuses on the development of a management system for the implementation and maintenance of **ASC Requirements** on ASC certified farms.

Intent – The aquaculture industry continuously manages and improves processes to deliver consistent performance against the ASC requirements.

Indicators:

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| 1.2.1 | The UoC shall develop, implement and maintain a management system to support the implementation of the ASC Requirements that is appropriate to the size and complexity of the UoC. |
| 1.2.2 | The UoC shall appoint at least one member of management responsible for the implementation of the ASC Requirements. |
| 1.2.3 | The UoC shall ensure that relevant employees have the necessary skills and training to implement the ASC Requirements. |
| 1.2.4 | The UoC shall annually review the management system and revise it where necessary to ensure its continued suitability, adequacy and effectiveness in implementing the ASC Requirements. |